

BEFORE THE IOWA BOARD OF
SOCIAL WORK EXAMINERS

IN THE MATTER OF:	)	CASE NUMBER: 97-09
	)	
DAVID JAMES HUEBNER	)	INFORMAL SETTLEMENT
	)	AND FINAL ORDER
Respondent.	)	

COMES NOW the Board of Social Work Examiners of the State of Iowa ("Board") and David James Huebner ("Respondent"), and pursuant to Iowa Code sections 17A.10 and 272C.3(4), enter into the following Informal Settlement of the contested case currently on file against the Respondent:

1. The Respondent was originally licensed to practice as a social worker in the state of Iowa on April 15, 1997, and holds license number 01823.
2. A Statement of Charges was filed against the Respondent on October 29, 1997, alleging that Respondent engaged in fraud in procuring a license to practice social work in violation of Iowa Code section 272C.10(1) and 645 Iowa Administrative Code 280.212(1). The Statement of Charges awaits hearing.
3. The Board has jurisdiction over the parties and subject matter of the Statement of Charges.
4. Execution of this Informal Settlement and Final Order constitutes the resolution of this contested case. By executing this Informal Settlement and Final Order, Respondent expressly waives all rights to a contested case hearing on these charges and waives any objection to this Informal Settlement and Final Order.

5. The Respondent is freely and voluntarily entering into this Informal Settlement and Final Order, and he agrees that the State's counsel may present this agreement to the Board.

6. This Informal Settlement and Final Order is subject to the approval of the Board. If the Board approves this agreement, it becomes the final disposition of this matter. If the Board fails to approve this agreement, it shall be of no force or effect to either party.

7. This Informal Settlement and Final Order shall be part of the permanent record of Respondent and shall be considered by the Board in determining the nature and severity of any disciplinary action to be imposed in the event of any future violations.

8. In the event Respondent violates or fails to comply with any of the terms of this Informal Settlement and Final Order, the Board may initiate appropriate action to revoke or suspend Respondent's license or to impose other licensee discipline in accordance with Iowa Code sections 272C.3(2)(a) and 645 Iowa Administrative Code section 80.214(13).

9. This Informal Settlement and Final Order is a public record available for inspection and copying in accordance with Iowa Code chapter 22.

10. Upon the Board's approval of this Informal Settlement, the Respondent's license shall be suspended indefinitely until further order of the Board, with no possibility of reinstatement for a period of three (3) years from the date of this agreement. During the entire period of suspension, the Respondent shall not hold himself out to be licensed social worker and shall not engage in any of the practices

or aspects of the practice of social work in the State of Iowa for which a license is required.

11. The Respondent may not petition for reinstatement of his license until he has met the following conditions:

a. The Respondent shall undergo a comprehensive, multi-disciplinary evaluation at a facility approved in advance by the Board. Prior to the evaluation, the facility shall be provided with the Statement of Charges, the Informal Settlement, and the investigative file in this contested case.

b. The Respondent shall provide, from the Board approved facility, an evaluation report and initial treatment plan. This initial treatment plan shall be subject to approval of the Board. The Respondent shall undergo treatment pursuant to such approved plan.

c. The Respondent shall sign a release which (a) will enable the Board to freely communicate with all individuals involved in Respondent's evaluation and treatment, (b) provide for full access by the Board to all records maintained with respect to such evaluation and treatment, and (c) provide for monthly reports on Respondent's progress to be submitted directly to the Board. It is the Respondent's responsibility to ensure that such monthly progress reports are provided to the Board.

d. Any proceeding for reinstatement shall be initiated by the Respondent, who may file with the Board an application for reinstatement. The application shall state facts which, if established, shall be sufficient to prove that Respondent has complied with the terms of this Informal Settlement, that the basis for the suspension no longer exists, and that it would be in the public interest for the

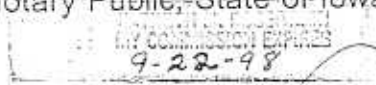
license to be reinstated. The burden of proof to establish such facts shall be on the Respondent.

AGREED AND ACCEPTED:


DAVID JAMES HUEBNER,
Respondent

1.9.98
Date

Subscribed and sworn to before me on January 9, 1998.


Notary Public, State of Iowa


This Informal Settlement is approved by the Board on January 20, 1998.


BRUCE BUCHANAN
Iowa Board of Social Work Examiners
Board Chairperson

Copies to:

Heather L. Adams
Assistant Attorney General
Hoover State Office Building
Des Moines, IA 50319

Myron L. Gookin
Attorney at Law
Foss, Kuiken & Gookin, P.C.
P.O. Box 30
Fairfield, IA 52556

STATE OF IOWA
BEFORE THE IOWA BOARD OF SOCIAL WORK EXAMINERS

IN THE MATTER OF LICENSE

*
*
*
*
*
*

CASE NO: SW 97-009

DAVID JAMES HUEBNER

NOTICE OF HEARING

RESPONDENT

TO THE ABOVE NAMED RESPONDENT:

On the 29th day of October, 1997 the Iowa Board of Social Work Examiners concluded that probable cause exists to file a statement of charges and order a hearing in this matter.

IT IS HEREBY ORDERED that a hearing be held upon the Statement of Charges. You are notified that a hearing will be held at 9:00 a.m. on the 13th day of January 1998 at the Lucas State Office Building, 4th Floor Conference Room Side 1, 321 E. 12th Street, Des Moines, Iowa.

You may appear personally and be represented by legal counsel at your expense, with the right to produce evidence in your behalf, to examine and cross-examine witnesses and to examine documentary evidence produced against you. If you fail to appear and defend, the hearing will proceed and a decision will be made.

You are hereby notified that the office of the Attorney General is responsible for representation of the public interest in these proceedings. Copies of all pleadings should be served on counsel at the following address:

Heather Adams
Assistant Attorney General
Hoover State Office Building
Des Moines, IA 50319

Dated this 29th day of October, 1997.


Roxanne Sparks, Board Administrator
Iowa Board of Social Work Examiners

BEFORE THE IOWA BOARD OF
SOCIAL WORK EXAMINERS

IN THE MATTER OF:

DAVID JAMES HUEBNER,

Respondent.

)
)
)
)
)

CASE NUMBER: 97-09

STATEMENT OF CHARGES

TO THE ABOVE NAMED RESPONDENT:

The Iowa Board of Social Work Examiners has jurisdiction of this matter pursuant to Iowa Code chapters 17A, 154C, and 272C (1997).

Licenses issued by the Board are subject to the laws of the state of Iowa and to the administrative rules of the Board.

Respondent was issued license number 01823 to practice as a social worker in the state of Iowa on April 15, 1997, as recorded in the permanent records in the office of the Board.

Respondent's license to practice social work in Iowa is current and will next expire on December 31, 1998.

Respondent's current address as reported to the Board is 2385 175th Street, Fairfield, Iowa, 52556.

COUNT I

Respondent is charged with engaging in fraud in procuring a license to practice social work in violation of Iowa Code section 272C.10(1) and 645 Iowa Administrative Code 280.212(1).

CIRCUMSTANCES

1. While practicing as a social worker in the state of Missouri in 1994, Respondent engaged in a sexual relationship with a patient.
2. While practicing as a social worker in the state of Iowa in November and December of 1996, Respondent on at least five occasions engaged sexual activities with a patient.

3. On his application for licensure, Respondent certified that the information he provided to the Board contained no willful misrepresentations and was true and complete. Respondent further certified that should an investigation at any time disclose otherwise, he may face disciplinary sanctions if already licensed.

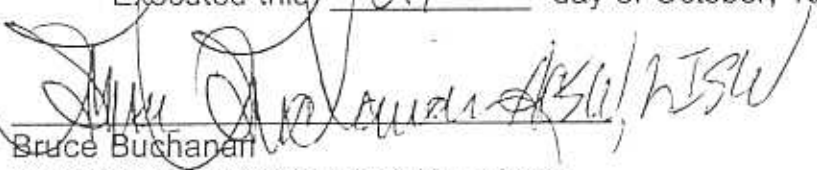
4. On his application for licensure, Respondent certified that he had adhered to the social work code of ethics as prescribed by the Board.

5. The social work code of ethics prohibits any sexual relationship, physical intimacies, or sexual activities between a social worker and a patient.

FINDING OF PROBABLE CAUSE

On October 29, 1997, the Iowa Board of Social Work Examiners found probable cause to file this Statement of Charges and to order that a hearing be set in this case.

Executed this 29 day of October, 1997.


Bruce Buchanan
Iowa Board of Social Work Examiners
Board Chairperson